

Court No. - 34

Case :- WRIT - C No. - 5521 of 2019

Petitioner :- Manish Kumar Agrawal

Respondent :- State Of U P And 4 Others

Counsel for Petitioner :- Shyam Shankar Mishra

Counsel for Respondent :- C.S.C.,Chandan Agarwal

Hon'ble Sudhir Agarwal,J.

Hon'ble Rajendra Kumar-IV,J.

1. Heard Sri Shyam Shankar Mishra, learned counsel for petitioner, learned A.G.A. for State-respondent and Sri Chandan Agarwal, learned counsel for respondents- 3 to 5.

2. Petitioner has sought following relief:-

(i) Issue, a writ, order or direction in the nature of Mandamus commanding and directing to the respondents to grant connection of Electric without installed of transformer.

3. When questioned, learned counsel for petitioner could not show any provision under which he is entitled for use of electricity connection without installation of transformer. Even what relevant provisions of Electricity Act, 2003 would be attracted, is not in the knowledge of petitioner.

4. When a question or dispute arises in matters relating to generation, transmission and distribution of electricity, remedy lies under provisions of Electricity Supply Code, 2005 wherein concerned person can approach District Grievance/Redressal Forum which has been constituted in every district and if he is not satisfied with decision of such body, then further remedy is before Ombudsman.

5. Dismissed on ground of alternative remedy, but we also place on record our great concern to the manner in which petitioner's counsel has prepared

the matter.

Order Date :- 18.2.2019

Nirmal